

25STCV33676 25STCV33676

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Case Number: 25STCV33676 Hearing Date: June 25, 2026 Dept: 515

NATURE OF PROCEEDINGS: Hearing on Motion for Trial Preference

The Motion for Trial

Preference filed by Plaintiffs is
granted.

BACKGROUND

Plaintiffs Khayla Sims, Kameron Wilson, Jayde Wilson, and Dashionne J. Cole (collectively "Plaintiffs") filed this action against Properties West Management Company (Properties West), Valeria C. Kern and Valeria C. Kern, a trustee of the Valeria C. Kern Trust (collectively "Defendants"), alleging that Defendants failed to maintain and repair the residential property at 1111 West 14th Street #5, San Pedro, California, where Plaintiffs resided, leaving it in an uninhabitable condition. Plaintiffs allege the unit suffered from toxic mold, water intrusion, water leaks, water damage, excessive moisture, and cockroach and insect infestations, and that these conditions caused them personal injury.

The causes of action are: (1) Breach of the Implied Warranty of Habitability; (2) Negligence; and (3) Nuisance.

Khayla Sims filed a Motion for Trial Preference on behalf of minor Plaintiffs Kameron Wilson and Jayde Wilson. Defendants did not file an Opposition.

LEGAL STANDARD

Code of Civil Procedure section 36, subdivision (b) provides that “[a] civil action to recover damages for wrongful death or personal injury shall be entitled to preference upon the motion of any party to the action who is under 14 years of age unless the court finds that the party does not have a substantial interest in the case as a whole.”

Section 36 “is mandatory and absolute in its application and does not allow a trial court to exercise the inherent or statutory general administrative authority it would otherwise have.” (Koch-Ash v. Superior Court (1986) 180 Cal.App.3d 689, 692.) Where the statutory requirements of subdivision (b) are met, the court has no discretion to deny preference; no weighing of interests is permitted.

ANALYSIS

I. The Minor Plaintiffs Are Under the Age of 14

Plaintiffs seek a trial preference on the grounds that minor Plaintiffs Kameron Wilson and Jayde Wilson are under the age of 14. Kameron Wilson was born on April 26, 2020, and is six years old. Jayde Wilson was born on January 18, 2023, and is three years old.

Plaintiffs establish the minors’ ages through the applications for appointment of a guardian ad litem, in which their mother, Khayla Sims, declared each child’s date of birth under penalty of perjury, and the Court’s orders granting those applications. (Ohn Decl., ¶ 2, Ex. A.) Sims has personal knowledge of her children’s birth dates, and her sworn declarations are competent evidence of their ages. The Court is satisfied that both minor Plaintiffs are under the age of 14.

II. The Minor Plaintiffs Have a Substantial Interest in the Case as a Whole

Because the minor Plaintiffs are under 14, they are entitled to preference unless the Court finds that they do not have a substantial interest in the case as a whole. (Code Civ. Proc., § 36, subd. (b).)

Plaintiff does not cite, and the Court has not found, any

cases that define what it means for a plaintiff to have a substantial interest in the case for a preference motion. (See Weil, Brown, Civil Procedure Before Trial (Rutter Group 2026) ¶ 12:246.3 [“The meaning of this phrase will have to be developed by case law. Arguably, it could refer to cases with many claims and parties where the party claiming preference does not have a significant interest in the context of the entire litigation”].)

Without determining the precise limits of this language, it is clear that the minor Plaintiffs have a substantial interest here. Both join in each of the three causes of action for breach of the implied warranty of habitability, negligence, and nuisance, and their claims arise from the same conditions at the same property as the adult Plaintiffs’ claims. Plaintiffs also represent that the minors suffered personal injuries from those conditions. Kameron Wilson’s interrogatory responses attribute to the conditions, among other things, asthma, pneumonia, eye irritation, skin rashes, and respiratory and gastrointestinal symptoms, for which he received treatment and medication. (Ohn Decl., ¶ 4, Ex. B.) The minors are two of the four named Plaintiffs, and nothing in the record suggests their interest is peripheral to the litigation. The Court concludes that the minor Plaintiffs have a substantial interest in the case as a whole.

The requirements of section 36, subdivision (b) being satisfied, preference is mandatory, and the Court has no discretion to deny it.

CONCLUSION

Khayla Sims’ Motion for Trial Preference is granted. Trial shall be set within 120 days of the date of this order.